

Ramhit v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 22 September 2020 · WRIT - C No. - 13831 of 2020 · **Writ disposed; petitioner relegated to a Section 127 appeal against the 21 September 2020 final assessment, with liberty also to object to the assessment bill as the bill itself provided.**

HEADNOTE

Where a writ challenges a recovery notice but the Executive Engineer thereafter issues a final assessment, the High Court will dispose of the petition without examining the demand and leave the consumer to appeal under Section 127 of the Electricity Act, 2003, and to any objection the assessment bill itself allows.

FACTUAL SUMMARY

Ramhit challenged an 18 March 2020 recovery notice of the Executive Engineer, Vidyut Vitaran Khand-II, Purvanchal Vidyut Vitaran Nigam Ltd., Prayagraj. Earlier October 2019 recoveries were the subject of Writ C No. 41965 of 2019, disposed on 18 December 2019 directing objections before the Executive Engineer, staying coercive action until a final order, and leaving a Section 127 appeal thereafter. He alleged those objections were still undecided when the fresh notice issued. The licensee then produced a 21 September 2020 final bill for Rs. 85,849.35.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to Section 127 after final assessment

HOLDING

Once the Executive Engineer produces a subsequent final assessment during a writ against a recovery notice, the High Court will not examine the demand on merits and will dispose of the petition with liberty to challenge that final assessment in appeal under Section 127 of the Electricity Act, 2003, and to submit any objection to the assessment bill as provided in the bill itself. ¶ 1

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal The 21 September 2020 final assessment having been produced at the hearing, the Court relegated the petitioner to the Section 127 appeal rather than deciding the recovery on the writ. ¶ 1

alternative-remedy-relegation-section-127 The writ against the March 2020 recovery was disposed of because a statutory appeal under Section 127 now lay against the subsequent final assessment. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS AND QUANTUM OF THE 21 SEPTEMBER 2020 FINAL ASSESSMENT OF RS. 85,849.35

Left to the Section 127 appeal and to any objection the assessment bill itself provided. ¶ 1

NOT DECIDED — WHETHER THE 18 MARCH 2020 RECOVERY NOTICE WAS ISSUED WITHOUT DECIDING THE PETITIONER'S OBJECTIONS

Overtaken by production of the subsequent final assessment. ¶ 1

